

Multiple Choice (10 marks)

1. Under common law principles, which of the following is not correct regarding the duty owed by a possessor of land towards an undiscovered trespasser?
 - (a) No duty for artificial conditions.
 - (b) A duty for natural conditions.
 - (c) No duty for natural conditions.
 - (d) No duty for active operations.
2. Which of the following criticisms of Llewellyn's distinction between the grand and formal styles of legal reasoning is the most compelling?
 - (a) There is no distinction between the two forms of legal reasoning.
 - (b) Judges are appointed to interpret the law, not to make it.
 - (c) It is misleading to pigeon-hole judges in this way.
 - (d) Judicial reasoning is always formal.
3. Who said that "Jurisprudence is the eye of law"
 - (a) Savigny
 - (b) Kelsen
 - (c) Austin
 - (d) Hart
 - (e) Bentham
4. Which of the following most accurately describes Hart's response to Fuller's argument concerning the invalidity of Nazi law?
 - (a) The Nazi law in question was validly enacted.
 - (b) The Nazi rule of recognition was unclear.
 - (c) Hart agreed with Fuller's argument.
 - (d) The court misunderstood the legislation.
 - (e) Fuller misconstrued the purpose of the law.
5. Point out the most accurate response : According to Austin, law has the following attributes :
 - (a) Command, sovereign and legal remedy
 - (b) Command, sovereign and authority

- (c) Command, sovereign and legal enforcement
- (d) Command, sovereign and legal responsibility
- (e) Command, sovereign and obedience by subject

True / False (10 marks)

Answer True or False

- 6. True or False: Cold pursuit is a widely accepted exception that allows warrantless searches in urgent situations.
- 7. True or False: Contracts for the purchase of crops and timber to be severed are classified under the Uniform Commercial Code (UCC).
- 8. True or False: The rule of recognition both confers power on judges and imposes duties to decide cases within a legal framework.
- 9. True or False: The unlawful homicide committed by the Minister of country X abroad is classified as a private act (*jure gestionis*).
- 10. True or False: Termination of a parent's custody rights and welfare benefits only requires prior screening by a neutral fact finder.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the legal implications and distribution of Mary's estate as specified in her will, considering the potential contest by Joan and the role of the Salvation Army in the inheritance process.
- 12. Discuss the implications of bidder rights in an auction context, specifically addressing the principle that a bidder may retract their bid until the auction concludes. How does this principle align with constitutional law principles?

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